

Court No. - 21

Case :- WRIT - C No. - 9476 of 2023

Petitioner :- Dharmpal

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Shahabuddin, Kamleshwar Singh

Counsel for Respondent :- C.S.C., Baleshwar Chaturvedi

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Prashant Kumar, J.

The petitioner has challenged the recovery notice dated 10.3.2022 issued by respondent no.3 for recovery of dues in a case of theft of electricity.

Sri Baleshwar Chaturvedi, learned counsel for the respondent-Electricity Department states that the impugned recovery has been withdrawn and that a fresh notice has been issued to the petitioner fixing date and place for hearing of objections and that a fresh order will be passed.

Having regard to the submission made, we dispose of the instant petition with liberty to the respondent-Electricity Department to pass fresh order strictly in accordance with the procedure prescribed under the U.P. Electricity Supply Code, 2005.

(Prashant Kumar, J.) (Manoj Kumar Gupta, J.)

Order Date :- 24.3.2023

SL